

Day - 1

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Ques:- Critically analyse the shift from caste-based to multi-axis affirmative action in India with examples from recent state level initiatives such as sub-categorisation and gender-based reservations.

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Answer:- The affirmative action in India is enabled by articles 15 and 16 of our Constitution and is rooted in the theory of corrective and distributive justice of John Rawls. It has shifted from caste-based to multi-axis, to ensure social mobility, empowerment and gender equity not historical oppression alone.

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Shift from Caste based to  
Multi-axis affirmative action

(A) Caste-based reservation

↳ To ~~undo~~ undo historical injustices.

(1) For SCs and STs

→ 15% for SC and 7.5% for ST in jobs and education.

→ Article 15(4) and 16(4) enable reservation in education and public employment.

→ Article 330 and 332 — reservation in legislatures.

(2) For OBCs

27% reservation in central services, implemented by PM V.P. Singh in 1990.



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## (B) Multi-axis

### (1) Gender-based reservation

→ 33% reservation for women  
in Panchayati Raj Institution &  
Urban Local Bodies.

↳ 50% in Bihar.

→ 35% horizontal reservation for  
women in state jobs of Bihar.

### (2) Economic criteria

→ With 103rd CAA, 10% reservation  
is introduced for EWS among  
general category candidates.

### (3) Criteria Based on intersectionality and composite disadvantage

→ Reservation for disabled, transgender,  
religious minorities.

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Do not  
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this marginCritical Analysis.Do not  
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this margin(A) Caste-based affirmative action

→ It is seen as the perpetuation of caste-identities.

→ Incentivise caste-based identity politics and sectarian mobilisation.

→ Leading to a reservation race. eg:- by Patidars, Marathas, Jats etc

→ Issue of sub-categorisation

↳ The motive behind it, is to prevent intra-group inequality.

But the application of sub-categorisation in SC and ST remains contested.

Opponents argued that SC/ST discrimination is primarily social and related to structural disadvantages.



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and not economic.

→ In Tarnail Singh vs. Lachhmi Narain Gupta (2018), Supreme Court indicated that the creamy layer could apply to SC/STs in promotions.

But critics argue that promotions should be merit-based.

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### (B) Multi-axis Affirmative action

→ Reservation for EWS breaks the 50% ceiling set in Indra Sawhney.

→ Erosion of Meritocratic ethos

Reservation may compromise institutional efficiency in sectors like judiciary, medicine & administration.

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→ Reservation has become a tool of competitive populism, expanding quotas without evaluating outcomes.

→ Implementation of reservation based on intersectionality or multi-axis can be complex or weak.

eg:- → 4% reservation for PWD,

↳ SC/STs have 33% horizontal quota for women.

↳ Bihar has 35% reservation in state job for women, both at vertical and horizontal level.

⇒ Way forward

① Evidence based social justice  
Caste-based census would



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generate empirical data, which can help to assess actual backwardness and representation.

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② Creamy layer across all groups

↳ To ensure intra-group equity and targets those truly in need.

③ Complement reservation with capability enhancement

↳ focus on educational quality, language training, bridging courses and mentorship programs.

Thus, affirmative action lies in the principle of substantive equality - that unequal groups must be treated unequally to ensure fairness.